

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

November 10, 2008

The Governing Body of the City of Cheyenne met in regular session on this date at 6:00 p.m. in Council Chambers. Present were: MAYOR-Jack R. Spiker; COUNCIL MEMBERS-Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins (arriving at 6:03 pm), Dr. Rinne, Mr. Segrave and Mr. Valdez. Absent: Mr. Laybourn, and Mr. Pierson. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Bob Nicholas, Acting City Attorney.

Ms. Broyles recognized various community agencies and City departments as recipients of 2008 Community Development Block Grant funding for programs and projects.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests, in which event the item will be removed from the Consent Agenda and considered in its normal sequence on the agenda.) Mr. Valdez moved to approve Consent Agenda items, seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body present.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON OCTOBER 27, 2008. Motion (per consent agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON NOVEMBER 3, 2008. Motion (per consent agenda) carried.

Mr. Segrave moved to approve payment of vouchers as presented, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body present.

"AN ORDINANCE AMENDING TITLE 5, BUSINESS LICENSES AND REGULATIONS, CHAPTER 5.12, ALCOHOLIC BEVERAGES, SECTION 5.12.090 (B), MINORS-DISPENSING ROOM RESTRICTIONS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING, CONCERNING MINORS EMPLOYED IN A RESTAURANT AND FULL SERVICE RESTAURANT ENVIRONMENT." Mayor Spiker announced the item was being withdrawn from the agenda at the request of the sponsor.

"AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM LR-2 LOW-DENSITY RESIDENTIAL-DEVELOPING DISTRICT TO NB NEIGHBORHOOD BUSINESS DISTRICT FOR THE SOUTH 130-FEET OF THE WEST 100-FEET OF TRACT 2, SKYLINE TRACTS, CHEYENNE, WYOMING (LOCATED AT THE NORTHEAST

CORNER OF THE INTERSECTION OF STOREY BOULEVARD AND SYCAMORE ROAD).” Dr. Rinne declared a conflict of interest (nearby property owner interests) and vacated Council Chambers. Gloria Milmont commented on a letter she had sent to Council members and expressed concerns with the property being zoned for commercial use in an established residential neighborhood. She advised she was not against the property owner’s proposed business but is opposed to the recommended zoning classification, suggesting that a Mixed Use Residential (MUR) zone would be a better option. Property owner Bob Parry requested action on the item be postponed to provide his attorney the opportunity to review and provide legal comment and analysis regarding the conditional zone restrictions approved at the last City Council meeting. Kathryn and Brent Kunz spoke in opposition to postponement. Reporting for Public Services Committee, Mr. Collins moved to approve on third and final reading, seconded by Mr. Valdez. Mr. Collins moved to postpone for two weeks (to Nov. 24, 2008), seconded by Ms. Broyles. Ms. Milmont indicated her support of a postponement if a MUR, instead of a Neighborhood Business, zone would be considered during the postponement time frame. Motion to postpone carried. Voting “yes” – all members of the governing body present in Council Chambers with the exception of Ms. Case and Mayor Spiker voting “no”.

“AN ORDINANCE AMENDING SECTIONS 2.04.040, 2.04.160 AND 2.04.170 OF TITLE 2, ADMINISTRATION AND PERSONNEL, CHAPTER 2.04, MAYOR AND CITY COUNCIL, OF THE CHEYENNE CITY CODE TO PROVIDE FOR A CLERICAL CORRECTION, AND TO CLARIFY STATE LAW PROVISIONS CONCERNING READINGS OF ORDINANCES AND REQUIRED VOTE.” Mr. Collins raised a point of order requesting action on the item be delayed until Dr. Rinne returned to Council Chambers with Mayor Spiker concurring. Dr. Rinne returned to Chambers. Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body present. (#3831)

“AN ORDINANCE AMENDING CERTAIN CHAPTERS AND SECTIONS OF TITLE 17, ZONING, OF THE CHEYENNE CITY CODE BY ADDING CHURCHES AS A USE REQUIRING ADMINISTRATIVE APPROVAL IN THE FOLLOWING ZONE DISTRICTS: NB-NEIGHBORHOOD BUSINESS DISTRICT, CB-COMMUNITY BUSINESS DISTRICT, MUR-MIXED USE WITH RESIDENTIAL EMPHASIS DISTRICT, MUB-MIXED USE WITH BUSINESS EMPHASIS DISTRICT, AND BY ADDING CHURCHES AS A USE REQUIRING BOARD APPROVAL IN THE LI-LIGHT INDUSTRIAL DISTRICT.” John Fafoutakis questioned local government involvement pertaining to zoning requirements for church use. Mayor Spiker stated the proposed changes to zoning regulations were requested by the faith community, advising that some non-traditional places of worship are affected by zoning regulations. Mr. Collins moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting “yes” - all members of the governing body present.

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM CB COMMUNITY BUSINESS DISTRICT TO HR-2 HIGH-DENSITY RESIDENTIAL-DEVELOPING DISTRICT FOR LOT 6, BLOCK ONE, GATEWAY SOUTH, CHEYENNE,

WYOMING (LOCATED EAST OF WALTERSCHEID BOULEVARD AND SOUTH OF WEST FOX FARM ROAD)” -- referred to Public Services Committee (sponsor - Mr. Collins).

“AN ORDINANCE AMENDING CERTAIN SECTIONS OF ORDINANCE #3733 PERTAINING TO THE ORIGINAL PUD PLANNED UNIT DEVELOPMENT DISTRICT ZONING CLASSIFICATION FOR JL RANCH AND INCORPORATING JL RANCH II AND JL RANCH III SUBDIVISIONS INTO THE PUD PLANNED UNIT DEVELOPMENT DISTRICT, BEING PORTIONS OF SECTION 1 AND 2, T.13N., R.66W., 6TH P.M., CHEYENNE, WYOMING (LOCATED SOUTH OF I-80, EAST OF SOUTH INDUSTRIAL ROAD)” -- referred to Public Services Committee (sponsor - Mr. Collins).

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM CB COMMUNITY BUSINESS DISTRICT TO HR-1 HIGH-DENSITY RESIDENTIAL-ESTABLISHED DISTRICT FOR THE W½ OF TRACT 10, AIRPORT VALLEY TRACTS, ALSO TO BE KNOWN AS A PORTION OF CANDLEWOOD SUBDIVISION, CHEYENNE, WYOMING (LOCATED EAST OF AND ADJACENT TO CROW ROAD, SOUTH OF STOREY BOULEVARD)” -- referred to Public Services Committee (sponsor - Mr. Collins).

“A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR PROPERTIES SITUATED IN A PORTION OF SECTION 1, 12, AND 17, T.13N., R.67W., 6TH P.M., LARAMIE COUNTY, WY (LOCATED SOUTH OF I-80 AND PREDOMINANTLY EAST OF SOUTHWEST DRIVE).” John Fafoutakis spoke in opposition to the annexation as proposed, citing infrastructure (sewer line size), railroad crossing safety, access and emergency responder concerns. Mr. Collins moved to adopt, seconded by Ms. Broyles. Mr. Collins moved to postpone for two weeks (to Nov. 24, 2008) at the request of the developer, seconded by Ms. Broyles. It was advised a request for postponement was received from the developer as well as the law firm representing residents contesting the annexation. Motion to postpone carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”.

[CA] “A RESOLUTION GRANTING AN EXCEPTION FOR DEVELOPMENT OF A TEMPORARY SMALL WASTEWATER SYSTEM PURSUANT TO THE “201 AGREEMENT” FOR PROPERTY DESCRIBED AS LOT 1, BLOCK 1, SOUTH CHEYENNE HIGH SCHOOL SUBDIVISION OF SECTION 7, T.13N., R.66W., OF THE 6TH P.M., CHEYENNE, LARAMIE COUNTY, WY.” Motion (per consent agenda) carried. (#5080)

[CA] “A RESOLUTION DECLARING AS SURPLUS CITY-OWNED PROPERTY DESCRIBED GENERALLY AS A FRACTION OF BLOCK 553, ORIGINAL CITY, CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED SOUTH OF 9TH STREET AND EAST OF DUFF AVENUE), AND AUTHORIZING THE CITY CLERK TO PROCEED WITH THE SALE OF SAID PROPERTY TO SCHROLL CABINETS, INC., IN ACCORDANCE WITH WYO. STAT. §15-1-112(B)(I)(D), TO BENEFIT THE ECONOMIC DEVELOPMENT OF THE MUNICIPALITY.” Motion (per consent agenda) carried. (#5081)

[CA] “A RESOLUTION DECLARING THE INTENTION OF THE 1995-1998 1% OPTIONAL SALES TAX FUNDING, DESIGNATED IN RESOLUTION NO. 3565 AS \$250,000.00 FOR UNPAVED STREETS - REVOLVING LOAN GUARANTEE ACCOUNT, AS MET AND APPROVING RE DESIGNATION OF THE FUND TO BE USED FOR EXPANDING INFRASTRUCTURE ASSOCIATED WITH A HABITAT FOR HUMANITY PROJECT ON MESSENGER COURT AND MCCANN AVENUE.” Motion (per consent agenda) carried. (#5082)

[CA] “A RESOLUTION REPEALING RESOLUTION NO. 3921 WHICH ESTABLISHED PROCEDURES FOR THE ESTABLISHMENT OF A DESIGNATED REVOLVING FUND FOR THE PAVING OF UNPAVED STREETS (1995-1998 1% SALES TAX). Motion (per consent agenda) carried. (#5083)

[CA] “A RESOLUTION REPEALING RESOLUTION NO. 4992; CREATING A NEW RESOLUTION ESTABLISHING GOLF COURSE USER FEES AND CATEGORIES FOR THE AIRPORT GOLF COURSE AND KINGHAM PRAIRIE VIEW GOLF COURSE; AND PROVIDING FOR THE DIVISION OF REVENUES FROM SAID FEES TO BE DEPOSITED BETWEEN THE GENERAL AND CAPITAL IMPROVEMENT FUNDS. Motion (per consent agenda) carried. (#5084)

[CA] “A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYOMING STATUTE §15-1-402 EXIST FOR THE PROPOSED ANNEXATION OF SWAN RANCH SITUATED IN SECTIONS 11 AND 12, TOWNSHIP 13 NORTH, RANGE 67 WEST OF THE SIXTH PRINCIPAL MERIDIAN, LARAMIE COUNTY, WYOMING (LOCATED ALONG CLEAR CREEK SOUTH OF AND INCLUDING I-80 RIGHT-OF-WAY AND EAST OF AND INCLUDING I-25 RIGHT-OF-WAY)” -- referred to Public Services Committee (sponsor - Mr. Collins).

PRELIMINARY PLATS/PRELIMINARY ZONE CHANGES:

[CA] Preliminary Plat for South Park Estates 6th Filing, a replat of portions of South Park Estates, 2nd Filing, Interior Heights, Stanfield Addition Blocks 694 and 744, Standfield 3rd Addition and portions of Blocks 713-714, 754-756 and 775-777, Original City, Cheyenne, Wyoming (located north of I-80 between Partoyan Drive and Walterscheid Boulevard) -- referred to Public Services Committee.

LEASES/CONTRACTS/LEGAL:

[CA] Extended Warranty Agreement between the City of Cheyenne, Police Department, and Kustom Signals, Inc. for in-car video systems (1% Specific Purpose Sales and Use Tax Funds. Motion (per consent agenda) carried (amount not to exceed \$37,800.00). (#5317)

Authorizing the execution of a contract for purchase of real property located at 1621 Warren Avenue, Lots 3 & 4, Block 387, Original City of Cheyenne, Laramie County, Wyoming, for the development of downtown public parking. Mayor Spiker declared a conflict of interest (nearby property owner interests), relinquished duties of the chair to Council Vice-President Broyles, and vacated Council Chambers. John Fafoutakis questioned proposed parking rates and

public availability, and commented on concerns with graffiti, as experienced in the downtown parking structure, and adequate utilization of the new parking lot to uniformly benefit businesses in the area. Upon inquiry, Bob Bradshaw, Special Projects Director, reviewed the types of parking anticipated to be available, and advised acquisition amount for the property is \$700,000.00 and excludes the cost of developing the lot. Jay Harnish, owner, Ruby Juice; Christian Cherek, Director, Downtown Development Authority; Jerry Innis, owner, Pizzeria Venti; Gloria Milmont, resident, and Glen Garrett, architect, spoke in favor of the proposed parking lot. Topics discussed included: lack of dedicated parking on the east side of downtown; parking lot benefit to existing and potential new businesses, downtown customers and residents; 2006 DDA parking study; past parking studies; DDA goal to recruit dining and entertainment operations on 17th St.; effects lack of parking has had on downtown businesses, and development and character of the downtown area. Mark Shubert spoke in opposition of property acquisition, expressing his belief that service (privately owned) parking lots should be utilized. Reporting for Finance Committee, Mr. Segrave moved to approve in an amount not to exceed \$700,000.00, seconded by Mr. Collins. Comments included: importance of downtown, improving parking availability, previous parking studies indicating the need for more parking areas, and additional parking contributing to economic development of downtown. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers with the exception of Ms. Case voting “no”. Following announcement of the vote, Ms. Broyles returned duties of the chair to Mayor Spiker, who returned to Council Chambers. (#5318)

[CA] Memorandum of Understanding between the City of Cheyenne, Parks & Recreation Dept., and the National Guard Bureau, for off-site pilot test at Mylar. Motion (per consent agenda) carried. (#5319)

[CA] Agreement between the City of Cheyenne, Parks & Recreation Dept., and Cheyenne Artist Guild, for lease of the Carriage House located in Holliday Park. Motion (per consent agenda) carried. (#5320)

CHANGE ORDERS/CONTRACT MODIFICATIONS:

Contract Modification No. 5 to Contract No. 3932 between the City of Cheyenne and Voyageur Asset Management Inc., for a two year extension. Mr. Segrave moved to approve, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”. (#3932)

Contract Modification No. 2 to Contract No. 5140 between the City of Cheyenne, Public Works Dept., and Long Building Technologies, Inc., to add the Parks Maintenance Facility located at 4500 Dell Range Blvd, Cheyenne, WY, to the Wyoming Energy Conservation Improvement Program (WYECIP) Investment Grade Audit and Project Development. Mr. Segrave moved to approve in an amount not to exceed \$1,680.00, seconded by Mr. Brown. Upon inquiry, Vicki Nemecek, Public Works Dept., advised Parks and Recreation requested a review of the building to determine ways to improve future energy conservation and efficiency. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”. (#5140)

[CA] Contract Modification No. 1 to Contract No. 5274 between the City of Cheyenne and S&S Builders, LLC, for re-engineering of the Street and Alley Utility Vehicle Wash building eave height (2003-2006 1% Sales Tax). Motion (per consent agenda) carried (amount not to exceed \$17,300.00). (#5274)

Amendment No. 1 to Contract No. 5235 between the City of Cheyenne, Youth Alternatives, and the State of Wyoming, Department of Family Services, Protective Services Division, for the Community Based Family Support and Preservation Grant to extend the contract for 1 year. Mr. Segrave moved to approve, seconded by Mr. Valdez. Motion carried. Voting "yes" – all members of the governing body present. (#5235)

CONSIDERATION OF BIDS:

[CA] Consideration of Bid #R-9-09 from Halladay Motors, Inc. for furnishing two (2) new 2009 ¾ ton 4-door crew cab model, 4 wheel drive pickup trucks, for the Police Department. Motion (per consent agenda) carried (amount not to exceed \$57,670.00).

[CA] Consideration of Bid #M-5-09 for a contract between the City of Cheyenne, Parks & Recreation, and Recco, Inc. d/b/a Five-R Co., Cheyenne WY, for the Cheyenne Youth Activity and Community Center Project (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

APPOINTMENTS:

[CA] Appointment of Patricia Picot to the Mayor's Council for People with Disabilities; Ryan Schelhaas to the City Planning Commission, and Kenneth McCann to the Cheyenne Regional Airport Board. Motion (per consent agenda) carried.

[CA] Re-appointment of John Lyttle to the Art in Public Places Committee, and Jason Lewis to the Mayor's Council for People with Disabilities. Motion (per consent agenda) carried.

ANNOUNCEMENTS/REPORTS/MOTIONS:

Announcement was made of a public hearing to be held November 24, 2008 at 6:00 p.m. in City Council Chambers to receive comments and input on the proposed sale of surplus city transit vehicles to other Wyoming governmental entities known as the Tourism Promotion Joint Powers Board (d/b/a Cheyenne Area Convention and Visitors Bureau) and the Wind River Transportation Authority.

Announcement was made of the appointment of Marcia Mead to the Art in Public Places Committee; Wendy Owen and Richard Ammon to the Historic Preservation Board; and Robert Geringer to the Cheyenne Housing Authority, to be confirmed November 24, 2008.

Announcement was made of the re-appointment of Kimberly Elfering to the Mayor's Council for People with Disabilities; Nancy Abraham and Shirley Flynn to the Historic Preservation Board; and Keith Fox to the Building Code Board of Appeals, to be confirmed November 24, 2008.

OTHER CITY BUSINESS:

John Fafoutakis commented on concerns with overflowing community recycling bins. Vicki Nemecek, Public Works Dept., expressed appreciation to the community for recycling efforts; advised staff is working on an additional site to house bins for plastic, and confirmed the blue bins are emptied daily, including Sunday. Upon inquiry by Gloria Milmont, Mayor Spiker explained recycling bins at the Transfer Station are located inside the gates for monitoring purposes due to after hours depositing of items other than recyclable materials, and Ms. Nemecek advised the recycling bins located at the north Albertson's store have been temporarily unavailable due to concrete construction pad work.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:06 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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